

complaint

Miss M is unhappy with how Royal & Sun Alliance Insurance Plc (RSA) has handled a claim she's made under her buildings insurance policy.

background

In October 2018, Miss M contacted her insurer as she'd noticed several tiles on the ground floor of her property had cracked. She arranged for a contractor to come out and try and identify why this was happening. Miss M's contractor said the cracks might be linked to a potential escape of water.

RSA sent a surveyor out to review the damage. They didn't think there was any evidence of an escape of water taking place. The surveyor also indicated the cause of the cracking was likely due to the chipboard or plywood under the tiles not being securely fixed, and therefore the boards would expand as the house heated up and subsequently cause the tiles to crack. RSA went on to decline the claim for two reasons. The first being it could not identify any single insurable event. Secondly, it thought it most likely the tiles had not been fitted properly, and therefore the damage was more likely as a result of poor workmanship.

In January 2019, RSA issued its final response to Miss M's complaint declining the claim about the cracking floor tiles. It said, as there was no evidence of an escape of water, the trace and access part of the policy didn't come into effect. RSA also said if Miss M didn't accept this, she was free to provide her own technical report.

Miss M considered she'd provided enough evidence, including a report from a civil engineer, who recommended further intrusive investigation work be carried out to determine why the tiles were cracking. Miss M said this, and that she'd been told by RSA inspector that the trace and access part of her policy should come into effect, ought to be enough for RSA to accept her claim. Miss M asked us to look into her complaint. Our investigator did so but didn't recommend the complaint be upheld.

my findings

I've considered all the available evidence and arguments to decide what's fair and reasonable in the circumstances of this complaint.

Miss M has also told us about several other concerns she's had with her home. She's mentioned a leak she's from an upstairs ensuite bathroom, accidental damage to a single floor tile and a more recent escape of water. But these are the subject of a separate complaint with this service, and I'm not making a finding on those issues. I'm only considering the claim about the cracking damage to the floor tiles.

The issue I need to decide is whether I think it's fair and reasonable for RSA to decline to carry out an investigation under the trace and access part of Miss M's policy. I'm sorry to disappoint Miss M but, like our investigator, I don't agree it needs to take any further action and I'll explain why.

RSA has said, at this time, there's no evidence of a water leak or an insured event causing the cracking of the tiles. As a result, the trace and access part of the policy doesn't come into effect. Miss M has said the surveyor instructed by RSA told her trace and access should be carried out. While, the paperwork provided states further investigation *could* be carried out, it

says: *“PH to carry out trace & access to determine fault”*. This indicates to me it would be for Miss M to take this forward if she wanted. So, I’ve looked at what the policy says.

Miss M’s policy allows for trace and access to be carried out when there’s been evidence of an escape of water. It covers the cost of gaining access to the leak and putting right any damage that may be caused during this. The policy specifically says:

“Trace and access

We will also pay for necessary costs that you incur in locating the source of the damage...”

Miss M has said that her policy covers her for a suspected escape of water. However, the policy terms set out it’s for Miss M to decide whether to take further action to identify if an escape of water has occurred. If a leak is found, any necessary costs Miss M incurs will be reimbursed. And I think this supports the paperwork completed by RSA’s surveyor that it’s for Miss M to decide if she wants to take steps to identify the leak, not RSA.

It’s clear from the images Miss M has provided there is damage to the floor tiles. However, it’s not clear that there’s been an escape of water, or any other insurable event that she would be able to claim under. I appreciate Miss M says she’s not able to pay for these intrusive works without the reassurance she’ll be reimbursed under her policy.

However, having reviewed her policy carefully, I haven’t seen anything in there that would require RSA to cover the cost of lifting the floor tiles under the trace and access section of her policy, without clear evidence of an insurable event having occurred. RSA says if Miss M later decides to have further exploratory work carried out which showed there had been an escape of water, it would consider a claim in line with her policy terms. I think this is reasonable. But for the reasons I’ve given, RSA doesn’t need to do any more at this time.

my final decision

My final decision is I don’t uphold Miss M’s complaint, or direct Royal & Sun Alliance Plc to take any steps to put things right for Miss M.

Under the rules of the Financial Ombudsman Service, I’m required to ask Miss M to accept or reject my decision before 6 January 2020.

Emma Hawkins
ombudsman